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THE PITFALLS OF REPORTING ON CAMPUS SEXUAL ASSAULT

BY SARAH AL-SHALASH

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# The Politic


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# Standing with Standing Rock

**"This conflict is nothing new for my people. America has been taking what isn't theirs for centuries, and this is more of the same."**

**KATIE MCCLEARY '18** is one of dozens of Native students at Yale who has protested the construction of the Dakota Access Pipeline (DAPL) since April.

On December 4th, the Army Corps of Engineers denied an easement required for the Dakota Access Pipeline to cross underneath Lake Oahe, which provides the Standing Rock Sioux Reservation land with freshwater. The decision will halt the construction of the pipeline for the immediate future while the Corps explores alternative routes. However, the decision to halt construction is not permanent and could change once President-Elect Trump is inaugurated and assumes control over the Army.

Under the rejected route, the Dakota Access Pipeline would have passed through more than a thousand miles of North Dakotan oil fields. To end at a river port in Illinois, it would have run under the Missouri River at Lake Oahe, the main water source for the Standing Rock Sioux Tribe. A break in the pipeline would have leaked oil into the Sioux Nation's water — and oil and water do not mix.

Greg Buzzard LAW '18, a Native student studying Indian Law, acknowl-

# Yale Protests the Dakota Access Pipeline

BY **KEERA ANNAMANENI**

edged the immense importance that the anti-DAPL movement has had for America's Native peoples.

"Tribes have protested a lot of things, but this is the biggest thing to happen to Indian country in thirty or forty years. Nothing has unified Native people in the same way for decades," Buzzard told *The Politic*.

Supporters of DAPL argue that the pipeline's construction would have serious economic benefits. If constructed, the Dakota Access Pipeline will carry 470,000 barrels of oil per day from the Bakken Shale in North Dakota to Illinois. Executives at Energy Transfer, the corporation behind the pipeline, argue that it would have added thousands of jobs in North Dakota.

But Kenneth Gillingham, assistant professor of economics at Yale, rejects the argument that this pipeline would have helped North Dakotans. "There is little evidence that the pipeline [would] create more than a few thousand jobs," he said in an interview with *The Politic*. "And after the project is completed, pipelines take very little to maintain. We're talking about a few dozen jobs. So job creation isn't a serious benefit for construction."

Pipeline supporters also argue that construction would boost the national economy and stem reliance on foreign oil. "Right now, eighty percent of our oil comes from 'unstable nations.' That puts a lot of power in the hands of governments that have been accused of serious human rights violations," Gillingham said.

"If we built the pipeline, we could enter the world stage as a major oil producer, and cheap oil production from a stable country is always a plus," he argued.

"The United States is too small a player in the world economy to change oil prices or change the oil market in any way, but if [we] sell our own oil, instead of buying other people's oil, that's more money circulating in our economy, rather than money leaving for other nations' economies," Gillingham said.

But for most Native people, the conversations around DAPL have little to do with the economy and everything to do with history.

"Dakota Access Pipeline [is] not [an] isolated event in history. The state, in collaboration with private corporations, is continuing a history of environmental degradation of Native lands and attacks on Indigenous sovereignty," the Association of Native Americans at Yale (ANAY) wrote in a public statement."

"It seems like people want to treat the pipeline's construction as a simple cost-benefit analysis," Native student Elia Taffa '20 said in an interview with *The Politic*. "But we're talking about entire nations' cultural heritage here. We're talking about basic human injustice."

"To me, where the pipeline goes isn't life or death, economically or environmentally. This isn't about water, this isn't about the environment, at least not to me," Buzzard said. "This is about Indian country rights. This is about tribes having the authority to do unpopular things and this is about tribal sovereignty. And this is about whether the U.S. government deems it necessary to listen to tribal concerns."

Robert Mendelsohn, Davis Professor of Forest Policy and Economics, agrees that the decision to build the Dakota Access Pipeline ultimately revolved around cultural concerns, rather than environmental or economic analysis.

"All of that talk about climate change and leaks and water issues is a total red herring. Natives are mad because this land is precious to them, and they want[ed] the government to recognize that," Mendelsohn said. "Perhaps it would be easier if they just brought that into the open, because frankly, the pipeline will be better, not worse, for the environment."

Leading up to the decision, protests at Standing Rock swelled in numbers, perhaps leading to demonstrators' recent victory. Thousands of protesters flocked to North Dakota to join in the rallies. On November 2, officers in riot gear attempted to remove protesters from the camps near Cannon Ball, the portion of the

Standing Rock Reservation closest to the Missouri River. Since the standoff, more than four hundred people had been arrested.

Human rights agencies nationwide protested the local police's use of riot-control weapons like tear gas and water cannons on the protesters. The Morton County Sheriff's Department responded that riot control was necessary given the violent actions of protesters.

Buzzard, who visited Standing Rock, said he saw only peaceful tactics by the demonstrators. "The camp was a prayer place. The ethos is not of violence, at all. It was a ceremonial sacred place, and the tribal leadership made that very clear," he described.

Buzzard noted that alcohol, drugs, and contraband were strictly prohibited from the campsite to preserve its sacred origins. "Police have said there have been gunshots and rocks, but I saw no signs of any of that. There were training sessions about staying peaceful in the face of any conflicts. They were very on message about non-violence," he said.

Even on Yale's Campus, the Native American Cultural Center's work on Yale's campus allowed Yale students to directly protest the pipeline's construction before the decision. As soon as media coverage of Standing Rock spread during the summer, the Center began planning initiatives to help the Sioux Nation. The Center's board members declared their solidarity with Standing Rock in a letter they drafted to President Obama and legislators involved with the Environmental Protection Act.

"We should not have to make peace with that. And we won't."

"We don't know how much work our writing did," said McCleary, "but we like to think that we made a difference."

The Native American Cultural Center also organized a September teach-in with Mary Kathryn Nagle, a Native lawyer who specializes in commercial litigation. Nagle described the corporations invested in DAPL, the economic implications of rerouting the pipeline, and the human rights violations at Standing Rock. She noted that men – usually police officers or ranchers near Standing Rock — would invade the Sioux reservation and would violently assault the female protesters.

"These violations are a huge part of why we [were] fighting," McCleary said. "I think Nagle opened our eyes to the side of the protests that have nothing to do with the environment or facts or figures. We are just looking out for our people."

The Native American Cultural Center also started a fundraiser to collect winter clothing for the many "water protectors" who lack basic necessities. After placing collection bins in the residential college dining halls, the Center gathered four hundred pounds of winter clothing for Standing Rock.

On the weekend of November 5, the Center hosted the Ivy League Summit for Native Peoples, the largest gathering of Native college students on the East Coast. Students shared their experiences protesting DAPL and discussed ways to improve campus awareness of Standing Rock's conflict.

"We were so lucky to engage with a broad base of college students," Taffa said. "It was inspiring to know how big our community is because it doesn't always feel that way, and it's nice to know that together, we can be powerful and we can be heard."

Despite the Native American Cultural Center's work to support the DAPL protesters, some members of the Native community feel their efforts were not matched by the rest of the Yale community. Yale publications initially hesitated to cover the Cultural Center's engagement with DAPL, according to McCleary.

"No one wanted to cover us," she said. "It took all the Facebook protests and check-ins to get people interested."

When masses of people used Facebook to check in at Standing Rock and prevent the Morton County Sheriff's Department from geotargeting DAPL protesters, Standing Rock received another round of media attention on campus.

However, some Native students believe that although the pipeline may be built over an alternate route, indigenous people outside of Standing Rock will still feel its effects.

"If not the Očeti Šakowin, then another community will suffer the effects of the pipeline," said ANAY in a public statement. "Indigenous peoples and other communities of color and low-income communities suffer first and most from environmental degradation."

Chase Wester, a Native Yale student from Standing Rock, agreed that environmental concerns about the construction of pipelines are important despite the Army Corps' decision.

"We still have to worry about a Trump administration that wants to privatize reservations for our oil reserves. I hope that tribal sovereignty and rights can expand from this fight, and also a turn away from oil and towards clean renewable energy," he told *The Politic*, "I've heard elders say this many times, 'We do not own the earth. The earth owns us.'"

Given continued concerns about environmental hazards and tribal sovereignty, to some Native students, the DAPL decision serves a crucial reminder to keep fighting.

"The rerouting of the Dakota Access Pipeline represents a hard-fought victory not only for the Očeti Šakowin, particularly the Hunkpapa Lakota and Yanktonai Dakota, but also for Indigenous peoples globally; However, we must not forget that this fight is not over. " ANAY wrote, "We must remember that the #NoDAPL movement represents a global fight for Indigenous sovereignty and environmental justice."

# AN ISLAND DIVIDED: LGBTQ RIGHTS IN HISPANIOLA

BY **MAX SCHLENKER**

**THE MASSIMADI FILM FESTIVAL** was set to be the first of its kind in Haiti. Its aim was to explore the history of homophobia and LGBTQ equality across the African and Caribbean diasporas, beginning a much-needed dialogue about queer inclusion in the conservative nation.

But in the weeks before the event, which was slated to open in September, opponents of the festival expressed their staunch disapproval. Death threats poured in over social media. Two gay men died after a protest in Port-au-Prince, Haiti's capital. In a message to his constituents, Senator Jean Renel Senatus wrote that the Massimadi Festival posed a "great danger" to Haitian morals by "promoting homosexuality." The commissioner of Port-au-Prince bowed to public pressure and cancelled the event, effectively silencing the queer voices of Haiti and of the larger Caribbean.

Haiti occupies the western half of the island Hispaniola, which it shares with the Dominican Republic to the east. Despite their proximity, these neighboring countries have different languages, ethnicities, and economies. Haiti is the poorest country in the Western Hemisphere, suffering from slow rates of economic growth. The national language is French, and most of its citizens are of African descent. The Dominican Republic has a more stable economy and is developing at a faster rate. Dominicans are more split by ethnicity, though most speak Spanish and are of European descent.

Another divide between the two nations lies in how they treat their LGBTQ citizens. While neither country allows same-sex marriage, the Dominican Republic has passed some anti-LGBTQ discrimination laws. Haiti has no such laws. Haitian transgender people must undergo gender-reassignment surgery before they can legally change their names. In both Haiti and the Dominican Republic, however, only heterosexuals can adopt children.

Around the world, the status of LGBTQ rights seems like a regional agreement. Nations seem to follow their neighbors' example in determining how to treat their own LGBTQ citizens. North American countries have made steps towards equal rights for queer citizens, as does Western Europe. Equality across the border can often place social and political pressure on nations to pass laws protecting their queer citizens. The trend, however, does not explain the gulf between Haiti and the Dominican Republic.

Andrew Dowe '08, a lecturer in Yale's Women, Gender, and Sexuality Studies Department, said that the difference "has to be considered within the larger context of the rich and complicated history" surrounding Hispaniola.

For one thing, the countries have different colonial roots. Created as French and Spanish colonies, respectively, Haiti and the Dominican Republic have distinct histories that shape the evolution of queer rights.

According to Dowe, "The Dominican Republic's particularly strong connection with the Catholic Church" has influenced the country's policies on sexual rights. Church and state are much less separate in the Dominican Republic than in Haiti. Religion, therefore, plays an outsized role in shaping laws around reproductive and LGBTQ rights. In recent years, the Catholic Church has increasingly accepted queer people, boosting LGBTQ rights and giving pause to conservatives in the Dominican Republic.

The 2010 Haitian earthquake also elucidates the difference between the two countries. After the devastating earthquake ripped through thousands of buildings on January 12th, the country struggled to rebuild the nation and unite the people. As frustration, anger, and hopelessness spread, conservative Haitians began looking for scapegoats. They quickly turned their sights to the LGBTQ community.

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Evangelical television and radio groups—some sponsored by American investors—blamed gay Haitians and their sins for the destruction wreaked by the earthquake. In the weeks following, news organizations reported an aftershock of violence and prejudice toward Haiti's LGBTQ people. Some organizations cited incidents where LGBTQ Haitians were left in the rubble, unclaimed by their families for fear of persecution. In other instances, Haitian police forcibly removed queer people from refugee camps. Other stories described aid organizations that only distributed water and food to households with women in them. In his attempt to find clean water, a gay Haitian man dressed up in women's clothes and was nearly beaten to death when he was found out.

"Disasters are going to happen. Gay people fare far worse, and gay people recover the slowest," Cary Johnson, the executive director of the International Gay and Lesbian Human Rights Commission, told *The Politic*.

"We are completely invisible and forgotten," he said.

In response to increased levels of homophobia after the earthquake, Haitian activists in 2011 formed Kouraj, a group to improve LGBTQ rights in the country. Kouraj, which means "courage" in Haitian Creole, urged silenced queer Haitians to unify under one group. Critics reacted negatively to Kouraj at first, believing them too abrasive and aggressive with their goals. Though Kouraj aimed to draw attention to LGBTQ issues, their efforts provoked a backlash. In 2013, over a thousand people marched in Port-au-Prince to protest homosexuality.

By contrast, LGBTQ Dominicans have had a markedly better experience. Queer equality took a step forward in 2013 when President Barack Obama appointed Wally Brewster as United States Ambassador to the Dominican Republic. Brewster, the first openly gay ambassador to a Latin American or Caribbean nation, now lives in Santo Domingo with his husband, Bob Satawake.

Many Dominicans initially responded to Brewster's appointment with outrage. Rafael Esteva '19, a native of the Dominican Republic, remembers the anti-gay opposition to Brewster.

"The U.S. Ambassador to the Dominican Republic is openly gay, and he and his spouse have been the object of much mockery and hatred since their appointment in 2013," Esteva told *The Politic*. "A petition to the White House asking to remove him from office circled social media for some time."

Despite the criticism, Brewster's presence in the nation signifies tangible progress for many underrepresented people in the Dominican Republic. Not long after his appointment, Brewster met with LGBTQ activists in San Domingo to discuss possible HIV-prevention programs and awareness campaigns in the country. Earlier this year, the American Embassy helped to establish an LGBT Chamber of Commerce.

"[The LGBT Chamber of Commerce] is an improvement, even if its inauguration was followed by lots of criticism by society and another wave of hatred directed at [Brewster] for sponsoring the organization," Esteva said.

Below the government level, Dominican society has seen slow improvements and increased inclusion for queer people. Alondra Mejia '19, another student from the Dominican Republic, has seen instances of both homophobia and LGBTQ acceptance.

"From the people I have met, it's still a very taboo subject," Mejia said in an interview with *The Politic*.

"People on the island give the impression that they still don't feel very comfortable having open conversations and sometimes don't publicly accept LGBTQ people," Mejia reflected. "I have seen the positive reactions, in making people who identify as

"Disasters are going to happen. Gay people fare far worse, and gay people recover the slowest."

LGBTQ feel confident about themselves and how they choose to identify, but I have also encountered situations where there are negative comments, where people who identify as such are ridiculed," she continued.

Mejia gave an example of her friend in the Dominican Republic who is gay. Despite the remaining anti-gay sentiment in the country, "their family in general accepted their decision and was proud to have such a confident human being in their family."

Just north of Hispaniola, Americans have seen a remarkable push toward social justice for the LGBTQ community in the last two years alone. After a surge of legal battles, media campaigns, and various hashtags, the Supreme Court legalized same-sex marriage in June 2015. More queer characters are on TV, more politicians identify as LGBTQ, and more states have enacted anti-discrimination laws.

Some would argue that the goal of "equal rights" has finally been achieved. But with Donald Trump's election and the subsequent rise of intense conservatism, queer equality may face more challenges in the future than previously expected.

Dowe warned that too much influence from the West could increase tension in nations like Haiti and the Dominican Republic. "America is helping and hurting in nations with [LGBTQ] discrimination and has allowed for hyper-nationalist parties to push for specific political agendas like religious freedom as the right to discriminate," he said. Dowe expects recent events in the United States to prompt backlash–similar to the reactions against the Massimadi Film Festival – in other Caribbean nations.

However, younger generations are still hopeful.

"There have been improvements," Mejia said. "I haven't seen them directly but I have the impression that the younger generations are a lot more accepting of LGBTQ people just from conversations that come up when I talk to people back on the island."

Esteva agreed.

"I would say that among some people, especially the youth who are more in contact with U.S. media and television, there is greater tolerance for LGBTQ people," he said.

In Haiti, even with setbacks like the Massimadi Film Festival, groups like Kouraj have forged a path for queer activism to grow. The appointment of Ambassador Brewster has opened dialogue in the Dominican Republic. Going forward, Mejia, Esteva, and youth from across the Caribbean hope to see the progress they've witnessed in their own communities in the Dominican Republic reflected on both sides of the island.

# UNITED IN FEAR



TAKING AIM AT CONNECTICUT'S GUN CONTROL DEBATE

BY JACK KYONO

THE HISTORY OF THE GUN INDUSTRY IN THE UNITED STATES BEGINS AND ENDS WITH CONNECTICUT

**FLYERS FOR THE NATIONAL RIFLE** Association are stacked neatly by the entrance. Above, a sign on the industrial-gray wall reads, "Here is my Gun Permit: United States of America, The Second Amendment, issued 12/15/1791, NEVER EXPIRES."

I'm disoriented. I've never been to a gun range before, nor have I held a gun. The woman at the counter knows my type already: first-timer, curious what it feels like to have a finger on the trigger. I approach her.

What kind of targets? Which gun? I haven't the slightest idea how to answer. Whatever is recommended.

I decided to go to the gun range because I knew that I could only begin to understand the pro-gun community by first shooting a gun myself. Why do so many in Connecticut passionately defend their right to open-carry? Is shooting a gun inherently a political experience?

I pay for the rental and the service charge and sign a few papers. And just five minutes after I open the front door, I am holding a .22 caliber semi-automatic rifle.

**DECEMBER MARKS FOUR YEARS** since the Sandy Hook Elementary School shooting, the horrific day when twenty children and six teachers were murdered in five minutes.

Connecticut lawmakers reacted swiftly. In April 2013, Governor Dannel Malloy signed one of the toughest gun control laws in the country, banning the sale of high capacity magazines, several types of assault rifles, and armor piercing bullets. The law also required universal background checks. Gun control advocates heralded Connecticut as a success story.

Since then, Connecticut's representatives – most notably Senator Chris Murphy – have led a national push for gun control measures. Murphy, a former representative of the district that includes Newtown, caught the nation's attention with his fifteen-hour filibuster on the Senate floor after the Orlando nightclub shooting. Murphy ended his filibuster by showing a picture of Dylan Hockley, one of the children slain at Sandy Hook.

Connecticut's well-known gun control measures, however, do not fully represent the diverse views on guns within the state. To separate the national view of Connecticut's gun culture from the local truth, I spoke with three people involved in the state's 2013 gun law.

"It's an impulse card really, but the legislature wanted to take advantage of that moment, which was a horrible occasion, but since it was before us, some people wanted to go much further. That's a legitimate argument to me," said State Rep. Patricia Dillon (D-92), assistant majority whip of the Connecticut House of Representatives.

Dillon and the rest of her caucus were working against not only resistance from state Republicans, but also against time: Sales of assault rifles surged as a potential ban loomed. Passing the bill quickly would keep high-powered weapons out of people's hands. Despite the best efforts of her colleagues, Dillon feels that sections of the bill were insufficient, especially on budgeting for mental health reform.

"There's another argument that the law shouldn't get too far ahead of the public sentiment, or you end up driving it back. That certainly played out," she said.

In this case, keeping pace with public sentiment meant avoiding

conflict with Connecticut's pro-gun voters. The often conciliatory relationship that the legislature maintains with this vocal constituency has left a major loophole according to most gun control advocates: open carry.

"People are shocked to learn that this is allowed in Connecticut," said Ron Pinciaro.

Pinciaro is the Executive Director of Connecticut Against Gun Violence (CAGV), the most powerful gun control group in the state. His organization successfully lobbied to fast-track the 2013 bill through a special task force run by the Speaker's office. Since its passage, Pinciaro has redirected CAGV's focus towards reforming open carry laws, including its most dangerous loophole.

"Although the permit holder is required to have the permit on their person at all times, the police are not authorized to require the person to show their permit," Pinciaro said.

The only time police can demand to see a permit is if the individual is under direct suspicion of a crime. As it stands, anyone can openly carry a firearm in public without fear of questioning, whether or not they have a permit for it.

Open carry is certain to appear in the 2017 legislative session. Pinciaro and CAGV will likely work in constant opposition to their greatest opponent from the 2013 fight, the Connecticut Citizens Defense League (CCDL).

The CCDL, boasting over twenty thousand members across the state, has fiercely contested every move toward gun control, fearing what they call "creeping incrementalism." After the passage of the 2013 law, the CCDL immediately filed a lawsuit that almost appeared before Supreme Court. Two days after they submitted their petition, Justice Antonin Scalia passed away, effectively ending their chance at a hearing.

Scott Wilson, president of the CCDL, said that gun control has never prevented an act of crime from happening. If anything motivates a member of the CCDL, it is distrust of government.

"Generally I think that people like to know that they have the ability to protect themselves – they instinctively know that the police aren't going to be everywhere to protect you. Evil will always find a way to kill people," he said.

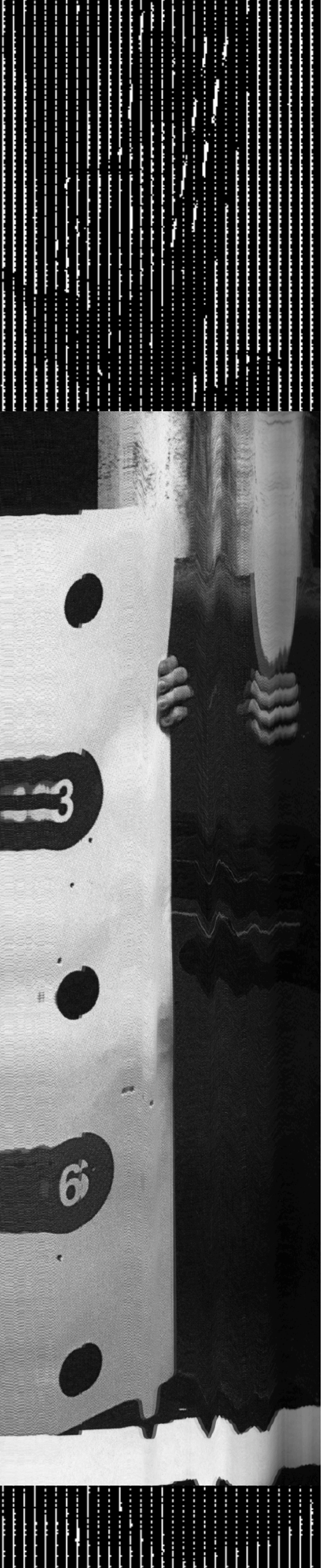
"GENERALLY I THINK THAT PEOPLE LIKE TO KNOW THAT THEY HAVE THE ABILITY TO PROTECT THEMSELVES – THEY INSTINCTIVELY KNOW THAT THE POLICE AREN'T GOING TO BE EVERYWHERE TO PROTECT YOU. EVIL WILL ALWAYS FIND A WAY TO KILL PEOPLE," HE SAID.

Gun control for Wilson isn't just about making access to guns more difficult – it is a threat to security. His suggestion to reduce gun violence?

"Roll back restrictions in large venues where many people gather — they're essentially disarmed and like a big bowl of victims waiting to be slaughtered."

**BACK AT THE RANGE,** I am told instructions quickly. Put the gun on safety. Load the magazine—only around seven rounds, or it jams. Always point down-range. I'm wondering, while awkwardly putting the now loaded gun to my shoulder, how anyone could find this pleasurable. The noise, the cold metal, the residual grease of the bullets – none of it is particularly appealing. And then I fire.

A slight jerk, and a small rip appears in the white paper of my target. The sensation – a quick jolt of energy – clues me into what draws so



MY RIFLE, WHICH AT FIRST FELT BULKY AND AWKWARD IN MY HANDS, HAS SINCE BECOME FAMILIAR, ALMOST AN EXTENSION OF MY PERSON.

many to this range. Firing a gun is an expression of power. With this gun in my hands, I have the ability to make a statement, to declare my autonomy with noise and lead. This power means the capacity to protect myself, even if no threat exists. I am starting to understand the people whose motivations I set out to uncover. Gun control is seen as a direct threat to this feeling of power. For many, it feels like disenfranchisement. I take out the magazine and reload.

**THE QUESTION STILL REMAINS.** Why, in Connecticut of all places, is there such a stark divide on this issue? Splitting the two sides of the gun control fight is the divide between urban and rural communities. The legislators most fiercely in opposition to gun control are typically Republican, representing voters from mostly rural towns. While this split is common to many states, Connecticut's gun rights community is further emboldened by the state's rich history of weapons manufacturing.

The history of the gun industry in the United States begins and ends with Connecticut. In 1798, Connecticut native Eli Whitney, better known for the invention of the cotton gin, established a weapons factory near New Haven to build muskets for the United States military. Whitney began a flood of arms manufacturing in the state by popularizing the concept of interchangeable parts. In 1855, Colt Manufacturing was established in West Hartford. By 1900, Smith and Wesson, Winchester Repeating Arms, and the Sharps Rifle Company all had factories in Connecticut.

Connecticut's gun manufacturers have become deeply political and often act as leaders of the pro-gun movement. When the State Assembly was holding public hearings on the gun-control bill after Sandy Hook, Colt gave its employees time off to protest in Hartford and provided them with transportation. More than 500 Colt factory employees rallied outside the state capitol on March 14, 2013. They held signs that read, "Save Our Jobs."

For them, guns are not just tools for recreation, hunting, and self-defense – they are their livelihood. But Colt, for example, has suffered a period of decline. In 2013, it lost its contract with the United States military. Two years later, after almost two centuries of business, Colt filed for bankruptcy. The people who have for generations built their careers around gun manufacturing have since aligned themselves with the gun rights movement. Even in a state so rife with contradictions, one principle still stands: the personal is political.

**THE GUN CLICKS—** I'm out of rounds. My rifle, which at first felt bulky and awkward in my hands, has since become familiar, almost an extension of my person. When I hand back the rifle to the woman at the counter, I feel relieved, but for the first time, my empty hands make me feel vulnerable.

As I leave the range, I can think only of the politics of power. The divide between both sides of the gun issue represents not only differing policy suggestions, but also disparate conceptions of what a gun is.

For one group, firearms conjure images of violence. For the other, guns represent freedom and power. With the passage of new gun control measures, the division will likely grow greater. The only thing seemingly uniting these two sides is fear— fear of violence, disempowerment, and that the other side may succeed.

# SECOND ESCAPE

## Human rights violations beyond the North Korean border

BY **MEGAN McQUEEN**

# "WOULD YOU LIKE TO SEE HOW A NORTH KOREAN SOLDIER MARCHES?"

**AS SHE DEMONSTRATED** for the room of students the signature stiff, leaping march of the North Korean People's Army (NKPA), Kim Jeong-ah maintained a solemn expression. When she finished, she turned to face her audience and spoke to her translator.

Kim Jeong-ah is the founder and executive director of Tongil Mom, a group of North Korean refugee women who seek to be reunited with their children. She is also a former soldier for the NKPA.

"She asks if you have seen the propaganda videos," said a translator, referring to dramatic videos released periodically by Kim Jong-un's dictatorial regime in North Korea that show hundreds of soldiers step-marching in military parades.

Several students nodded.

"These videos, these marches, are human rights violations," he translated for her.

"When soldiers train," Jeong-ah said, "they get hip gout, hemorrhoids or dislocated discs."

By the time she turned 21, Jeong-ah had developed hip gout that was so severe she lost control of the lower half of her body. Instead of treating her for her condition, government doctors confined her to a small room, where she was unable to control even her bowel movements.

"I was crawling in my own feces," she recalled. "I cursed the mother that gave birth to me. I thought, 'Instead of giving birth to me, you should have twisted my neck and killed me.'"

Jeong-ah emphasized that her experiences were not unique. In North Korea, widely considered the most closed society in the world, the Kim regime tortures, enslaves, executes, and imprisons — all to maintain control over its citizens.

Left by her birth parents at a young age, Jeong-ah vowed to herself that she would never desert her son or daughter as her mother had deserted her.

"But I myself abandoned my own child," she explained.

Jeong-ah gave birth four times. Her first child, a girl, was forcefully taken from her by her in-laws. Her second child, a boy who was subjected to violence in the womb by Jeong-ah's husband at the time, died shortly after birth.

"He kicked me in the stomach when I was seven months pregnant," she said.

After her son's death, Jeong-ah knew she had no alter-

native but to seek refuge outside of North Korea. But the routes to flee North Korea are limited. North Korea's border with South Korea is too heavily guarded to attempt to cross, so defectors must escape through the country's northern border with China.

"Almost all of the North Korean women that cross into China are sold into human trafficking," Jeong-ah said.

Jeong-ah eventually escaped to China, where she was sold to a man that became her husband and eventually gave birth to a daughter she had conceived while in North Korea. Though she had escaped the country, Jeong-ah feared she would be discovered by the Chinese authorities and forcefully repatriated to North Korea. While repatriation is usually voluntary, China returns defectors to their birth country against their will.

"Because of China's policy of forced repatriation for North Korean defectors," she said, "I feared for my daughter. So I placed her under my husband's family registry to protect her from arrest and repatriation."

Jeong-ah was able to able to flee from China into South Korea, but she had to leave her daughter behind. Today her daughter is nine years old and "living with a man who is not her father."

Motivations for fleeing North Korea vary, but the consequences of repatriation are almost always severe.

Eighty percent of defectors are female, and many defect for economic reasons. These women depend largely on their husbands; should they die or lose their jobs, women are left with few means to provide for themselves. Women are not allowed to participate in the formal economy, often forced to work in the black market.

Suzanne Scholte, chairman and founding member of the North Korea Freedom Coalition, explained the importance of the regime's songbun classification system in determining North Koreans' access to resources like food, jobs, and education.

"There are three major classifications of people: the loyal few or the elite, those who were wavering, and those that were hostile to the regime. If you are considered part of those that are loyal, then you will have access to food, material goods, and the benefits of a good education," Scholte told *The Politic*.

Those lower on the classification system, however, are not so fortunate. During the Great Famine, Kim government officials are believed to have used food as a weapon by banning disloyal North Koreans from receiving aid.

"It's almost like an apartheid system. It has nothing to do with your talents. It has nothing to do with your ambitions. It's an extreme method of control," said Scholte.

Hwang Hyun-Jeong, a member of Tongil Moms, recalled her struggle to make ends meet during the famine.

"The public distribution system organized by the state had collapsed, and people working for the state weren't being paid," she said in an interview with *The Politic*. "We went to work in the underground marketplace to survive."

While selling goods on the black market, Hyun-Jeong met a couple who encouraged her to leave her life in North Korea.

"They told me if I followed them I could make a lot of money in China," Hyun-Jeong said.

Hyun-Jeong agreed to follow the strange couple, only to realize too late that she had been fooled. The couple sold her into slavery in China, where she worked for three years before escaping to South Korea.

The price she paid for freedom was high. Though she has found a new life for herself in South Korea, Hyun-Jeong has not seen her daughter in twelve years.

"Ever since the Great Famine, in which 240,000 to 3,500,000 people died, many more North Koreans have escaped from the country," said Greg Scarliatiou, executive director of the Committee for Human Rights in North Korea in an interview with *The Politic*.

"About 30,000 of them have resettled in South Korea. These refugees do not receive any protection in China," Scarliatiou said.

The women of Tongil Moms hope that by raising awareness about China's inhumane repatriation policy, they will not have to leave their children for their own safety.

"It is said North Koreans defect twice: once from North Korea, and once from China. Both times they risk their lives," Jeong-ah said.

Human rights groups have long condemned China's repatriation policy on North Korean defectors as a violation of international law. Despite evidence to the contrary, Chinese officials maintain that the North Korean defectors crossing into China are economic migrants, not refugees. They also claim that defectors returned to North Korea are not punished.

Casey Lartigue, a founder of the nonprofit Teach North Korean Refugees, compared China's repatriation to slavery in the American South.

# "IT IS SAID NORTH KOREANS DEFECT TWICE: ONCE FROM NORTH KOREA, AND ONCE FROM CH

"In the American South it was illegal to help slaves who were trying to escape, and it's illegal in China to help North Korean refugees do the same," said Lartigue in an interview with *The Politic*. "There were bonuses and awards given to people who helped catch American slaves. In the same way, in China people get rewards for catching or giving information to help catch refugees."

"It was an outrage what happened in 19th century America. And it's an outrage what's happening today," he said.

In 2013, the United Nations Committee of Inquiry found the Chinese government guilty of crimes against humanity for its forceful return of North Korean refugees to the dangerous conditions from which they had fled.

But Chinese officials have continued their policy of forced repatriation, and many feel the international community has failed to respond appropriately.

"Trying to get more action, to put more pressure on China, has been very difficult because of our financial relationship with China," Scholte said. "It doesn't matter if you're a Republican or a Democrat. Our government has not pushed China the way we should, and that's very frustrating. There doesn't seem to be a willingness to put the kind of pressure on them that is necessary."

China has also offered financial support to the Kim regime. The country has been North Korea's most important ally and trading partner, providing most of its food and energy. China also opposes any harsh sanctions against its neighbor that might threaten Kim Jong-un's regime.

Dr. Go Myung-hyung, research fellow at the Asan Institute for Policy Studies, said that Chinese assistance is one of the primary reasons behind the continuing legitimacy of the Kim regime.

"North Korea wouldn't survive without Chinese aid," Go told *The Politic*.

The country has even shown a willingness to provide commodities to North Korea despite the government's inability to pay.

"For instance, China exports crude oil to North Korea, but these are on long-term loans that China probably does not expect to get repaid," said Go.

"So implementing sanctions aggressively, especially in finding the banks in China that do business with North Korea, and, secondly, ending slave labor, are the most important things we can do to stop the regime," emphasized Scholte.

"If we stop the flow of money to the regime, it cannot survive, because Kim Jong-Un won't be able to reward people with fancy cars or watches if there's no money. That's how [Kim] buys loyalty," she continued.

Frustrated with the slow pace of policy changes in the United States, many humanitarian organizations have turned to offering more direct assistance. They fund rescue missions, spread information within North Korea, and help North Korean refugees once they have reached safety.

One such organization is Free North Korea Radio, an independent radio broadcaster based in Seoul, South Korea. The station organizers are mostly refugees who broadcast to North Koreans looking to defect. Their programming covers the true history of the Korean War, obscured by government propaganda drilled into North Korean citizens. The station also highlights differences between North and South Korea and shares stories of recent defectors. Their program has been sponsored by the North Korea Freedom Coalition for several years.

"There is also an entire program on educating North Koreans on human rights," Scholte said. "Questions like What are human rights? What is democracy? They don't even know what a human right is or that they have those."

Sokeel Park, director of research and strategy for Liberty in North Korea (LiNK), spoke with *The Politic* about the work his organization does to help bring aspiring defectors to freedom. The group fundraises for rescue missions from both North Korea and China, bringing refugees to South Korea without expectations of repayment.

"Last year, we brought 145 people through," explained Park. "That's about 11 percent of the North Koreans that made it to South Korea in 2015."

Refugees assisted by LiNK may be coming from either North Korea or China. Sometimes, a defector is caught in China because of the country's repatriation policy.

"When a North Korean person escapes to China and is living in China, we have networks to help identify these people and connect them with help," Park said.

LiNK's support is not limited to rescue

INA. BOTH TIMES THEY RISK THEIR LIVES."

missions. The group also works with refugees once they have arrived in South Korea to ease them into their new, often strange, environment. Once refugees have settled in, they can send money to family or friends left behind in North Korea via broker networks.

"We work with people, in the long run, to help them fulfill their potential in their new lives," Park explained. "Some of these refugees go on to send money earned back to family members in North Korea."

A $1,000 transfer is often enough to make a difference in North Korean lives.

Media outlets often ignore the issue of settling refugees after their defection. People are drawn to the horror stories of the Kim dictatorship and the conditions within North Korea but seem less captivated by stories of refugees in the years after their escape.

Lartigue's nonprofit, Teach North Korean Refugees, focuses on teaching refugees English skills, so they can more confidently enter the job market. Lartigue explained how he identified a need for educational programs after first becoming involved with the effort to help North Koreans.

"Look, the escape is just the beginning of the battle," he said. "Getting out of North Korea is tough, but so is coming over to a brand new society."

Some refugees have gone on to write memoirs, give speeches, and help others gain the confidence to lead meaningful lives in a new place. Yonmi Park, who left North Korea in 2007, authored In Order to Live: A North Korean Girl's Journey to Freedom.

"One thing Yomni would say often is, 'People need to stop treating the North Korea issue as some joke, where there's a crazy dictator and brainwashed people. They turn it into a caricature. They need to realize that many people are struggling because of the dictators here. Our focus should be on helping them,'" Lartigue recalled.

Activists like Park, Lartigue, and Scholte all stressed the importance of reshaping the narrative of the North Korean issue from one focused on the Kim dictatorship to one focused on the people's efforts to improve their lives after escape. Before they can achieve liberty for themselves and their country, North Korean refugees need those removed from the conflict to listen. The challenges in North Korea may be enormous, but they are not insurmountable.

"North Korea is already changing, already opening," reflected Park. "It is moving toward a market economy, toward more external information access. People have more reference points with which they can compare their situations."

Scholte recalled the North Korean Human Rights Act, passed by President Bush in 2004, and credited the bill's success to North Korea Freedom Day, a holiday dedicated to activism on behalf of North Koreans.

"Members of Congress said that's why the bill passed. We had a thousand people come to Washington and rally on Capitol Hill," Scholte said. "People also went to visit their senators or talk to their congressmen that afternoon to ask them to support the legislation."

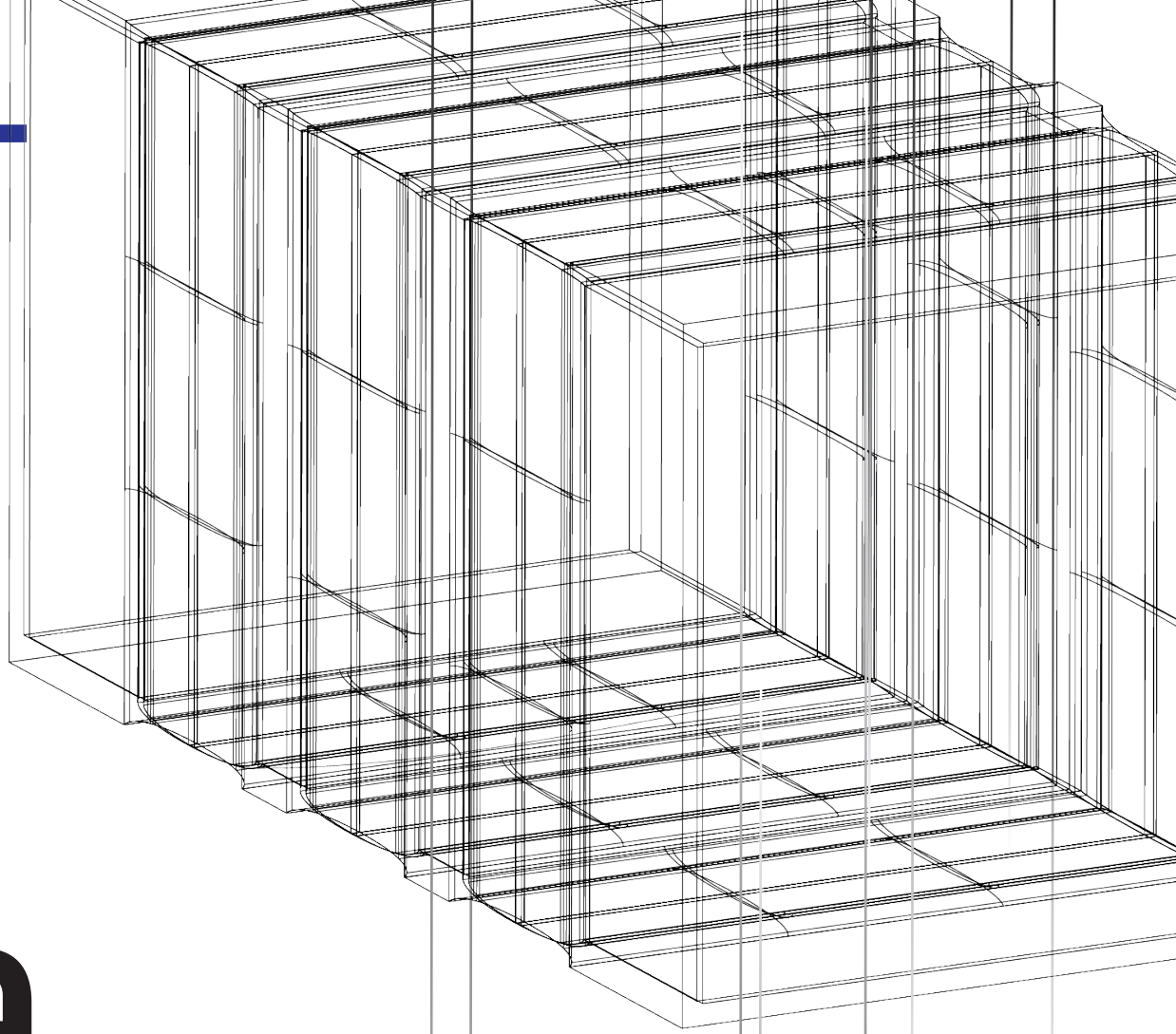
The activism propelling American legislation draws its strength from the growing movement led by the defectors themselves, women like Kim Jeong-ah and her fellow Tongil Moms. Their circumstances may be extraordinary, but even more impressive is their perseverance as they work to secure a place to call home for themselves and others. Change may not be immediate. But when defectors share their stories, the least we can do is listen.

"OUR GOVERNMENT HAS NOT PUSHED CHINA THE WAY WE SHOULD."

# se-cret courts, sing sour si

## the pitfalls of reporting on campus sexual assault

BY **SARAH AL-SHALASH**



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# "JOURNALISTS AREN'T ADVOCA

"there is no subject more that is more fraught with peril than this one,"

David Anderson, professor of law at the University of Texas, told *The Politic*. "It's so hard to get the information in the first place; it's so hard to confirm the information; it's so hard to know what the truth is. I can't think of one subject that's harder to cover than sexual assault."

From navigating closed-door disciplinary hearings and strict confidentiality policies to interviewing traumatized survivors and avoiding single-sided narratives, journalists face many pitfalls in reporting on campus sexual assaults. Reporters at *Rolling Stone* and at Yale have confronted these difficulties firsthand.

on november 19, 2014, *rolling stone* published "A Rape On Campus," a damning exposé of how university administrations handle rape on college campuses.

Sabrina Erdely's article told the gruesome story of "Jackie," a college freshman at the University of Virginia, who was invited by "Drew" to his fraternity's crush night. When she got to the fraternity, Phi Kappa Psi, Jackie was led upstairs, tackled onto a glass table, and gang raped on its broken shards.

The story broke readership records. It reached 2.7 million people, and sparked a broader national conversation about sexual assault on college campuses.

But a few weeks after the article's publication, news outlets started to raise questions about Erdely's reporting—and whether the story was true at all.

*Rolling Stone* hired auditors from the Columbia School of Journalism to uncover what had gone wrong. The Columbia report revealed significant gaps in the story's reporting. The three friends that Jackie said she approached after the assault, whom she singled out for their alleged callousness, were never contacted. Drew, the lifeguard who led Jackie up the stairs, was never a member of Phi Kappa Psi. The fraternity itself had no record of a "date night" being hosted that weekend. These errors made the article, in the words of the Columbia Journalism Review, "this year's media fail sweepstakes."

Two years after the article's publication, a federal court in Virginia found *Rolling Stone* guilty of defamation. The court penalized Erdely and her editors, and the mistake cost the magazine three million dollars.

*rolling stone*'s very public mistake demonstrates the problems journalists face when reporting on sexual assault.

In reporting on the UVA case, Erdely felt her main failure was that she did not press Jackie to corroborate the story.

"I allowed my concern for Jackie's well-being, my fear of retraumatizing her, and my confidence in her credibility to take the place of more questioning and more facts," she explained in a statement published in *The New York Times*.

"The *Rolling Stone* story was published at a moment of rising alarm about campus sexual assault," said Emily Bazelon '93, JD '00, a staff writer at *The New York Times*, in an interview with *The Politic*. "And however warranted that was, unfortunately *Rolling Stone* picked a story to tell that it didn't try hard enough to verify."

Vicki Beizer '18, Public Relations Coordinator at the Yale Women's Center, believes that in their attempts to verify stories of campus sexual assault, journalists can sometimes be too invasive.

# IT'S OUR JOB TO CHECK THE

Last spring at Yale, the University-Wide Committee on Sexual Assault (UWC) found basketball captain Jack Montague guilty of sexual misconduct and deemed the offense worthy of expulsion. At the same time, the team played its way to an Ivy League championship and its first NCAA Tournament berth since 1962, launching the case into national headlines.

In the media frenzy that followed, the Women's Center received emails from journalists hoping to report on the story. "We would get emails from reporters of actual news organizations like *The New York Times* and AP and USA Today, and they would ask questions that...[lacked] respect, in terms of journalistic standards," Beizer told *The Politic*.

Beizer expressed frustration at the requests. "When we get questions like: 'Can you give us the name of the victim?' I'm like, 'Really?'" she said.

"The number one concern should be the welfare of survivors," Helen Price '18, president of United Against Sexual Assault at Yale, echoed in an interview with *The Politic*.

But Bazelon worried about sacrificing good journalism."Journalists aren't advocates," she said. "It's our job to check the facts and to test an account for accuracy."

Fact-checking accounts of sexual assault is made more difficult by closed-door disciplinary hearings at universities. "Universities face a big dilemma when it comes to transparency," Bazelon said.

Much of the secrecy in university proceedings is the result of the Family Education Rights and Privacy Act (FERPA), a federal law mandating that schools protect their students' privacy. FERPA prevents schools from releasing any student's educational records without the permission of the student.

"Schools treat any type of discipline proceeding as part of a student's private records," Shan Wu, a former federal prosecutor who often represents college students in university disciplinary proceedings, said in an interview with *The Politic*. Under FERPA, he explained, disciplinary records cannot be released to the press. Without a public hearing or even a record of that hearing, media coverage becomes difficult.

Bazelon knows first-hand about issues of secrecy. She worked for months on the story of Emma Sulkowicz, a Columbia University student who vowed to carry a mattress everywhere she went until the university expelled her rapist. Paul Nungesser, the accused student, publicly denies the rape.

Bazelon eventually gave up on the story because of the lack of administrative transparency. "Even what happened behind closed doors at the tribunal itself was described in contradictory terms by different people, and I had no way of knowing who was right about what happened at the proceeding," she recounted.

Bazelon believes that universities have two incentives to withhold information. "They are mandated by FERPA to protect student confidentiality, and sometimes they conclude that it's in their self-interest to go beyond the law's requirements and withhold information," she said.

"Often, I'd argue, that's a mistake," she continued. "Secret courts do not instill confidence because people can't see for themselves whether they're fair or not."

at yale, the uwc guidelines require all members

of the Yale community who are involved in its proceedings to maintain a standard of strict confidentiality.

"If parties or witnesses fear that their participation or testimony in a UWC proceeding could be revealed," the statement reads, "then concerns about reputation, social tension, or retaliation may cause them to keep silent."

Melanie Boyd is assistant dean of student affairs and director of the

# "SECRET COURTS DO NOT INST

Community and Consent Educators (CCE) program at Yale, which is tasked with promoting a healthy sexual campus climate. She stressed the importance of confidentiality.

"In the many conversations I've had with people who are considering filing a complaint, confidentiality is almost always a concern. Filing a sexual misconduct complaint is a deeply personal experience," she said.

"People want to know whom the information will be shared with, and to have some control over that. It's hard for me to imagine most people going ahead if we couldn't reassure them that we will absolutely protect their confidentiality," she continued.

A Yale student who has been through the UWC formal and informal process spoke with *The Politic* on condition of anonymity. She sees a problem with the UWC's stringent confidentiality policies.

"While it's true that staying silent does offer a lot of security and is a completely respectable personal choice," she said, "often people who might want to speak up and share their stories feel bound to silence by this agreement."

In April 2015, Nicole Narea '16, then a staff writer for the Yale Daily News, worked around UWC confidentiality policies to write an article entitled "Harassment at SAE and its fallout." In the article, she describes a sexual assault case against Sigma Alpha Epsilon (SAE), a Yale fraternity now named Leo. A student, "Zoe," had argued her case against SAE before the UWC. She reached out to Narea to publicize her story because she felt Yale administrators were not doing enough to reprimand the fraternity members.

The article examined the secretive world of the UWC. Through leaked documents from the UWC case and interviews with the student and SAE brothers involved, Narea presented the facts of a case that had been "circling the campus rumor mill for a while."

Her article carried broad implications for journalism on sexual misconduct at Yale. Narea believes that her story moved the administration to close some loopholes in their ambiguous confidentiality rules and make it harder for information about the proceedings to get to the press.

Narea explained that before her story was published, there were "murky regulations surrounding to what extent people were allowed to release that information if they were still subject to this confidentiality clause."

"As a result of that story, they changed some of the rules about publicity surrounding UWC cases, which have made it now even harder to report," she said.

Nearly a year later, Narea encountered the roadblocks her article had created when she worked as a contributing reporter on the Jack Montague case for *The New York Times*. "I wish we had been able to go deeper than we did," Narea reflected.

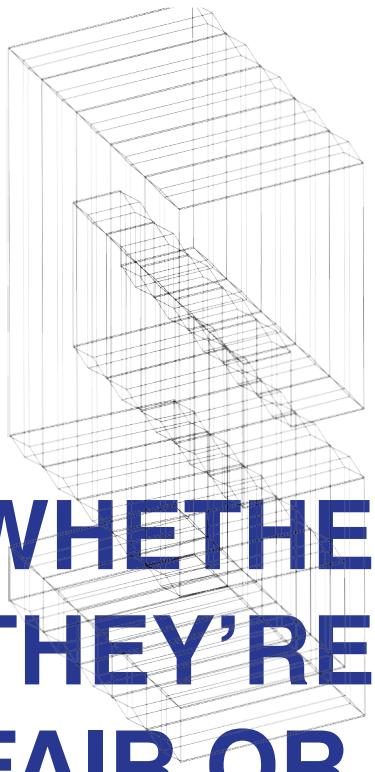
Narea reached out to the survivor in the Montague case, she was hesitant to come forward. "By that point I think the rules had changed, and she was not only hesitant because of privacy concerns, but I think that also because by virtue of going through the confidentiality process, you're not supposed to talk to the media," Narea recalled.

Kathryn Lofton, a member of the UWC and former chair of the Women's, Gender, and Sexuality Studies Department at Yale, acknowledged the validity of demands for transparency butdefended Yale's confidentiality policy.

"I do think it is incredibly fair... [but] it is understandably frustrating for journalists," she said. "I have compassion for the desire of the public to understand everything and know everything and read everything, but these are necessarily, importantly confidential proceedings."

Still, Narea said that iron-clad confidentiality rules at Yale might not be entirely for the survivor's safety. "As much as they should be beholden to the needs of their students, they also don't want a public relations nightmare," she said.

Anderson echoes that sentiment. "Universities are hiding behind those laws, to a large extent, because they do not want to have a reputation as being a place where people get raped."



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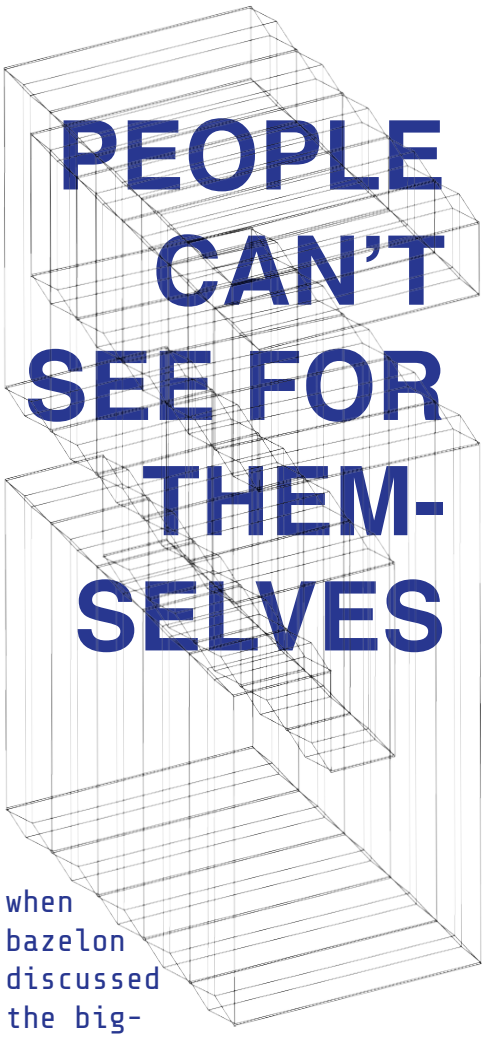


when bazelon discussed the biggest failings of *rolling stone*'s "a rape on campus"

she pointed to the danger of a single source.

"The basic lesson of [the *Rolling Stone*] case is that you cannot hang a serious story with serious allegations on a single source," she said.

If the issue in "A Rape on Campus" was a lack of corroboration, then the issue in the Montague case was the inability to corroborate due to UWC confidentiality policies. "I think, unfortunately, the primary voices in [the Montague story], particularly after the men's team did so well, were the basketball players themselves," Narea said.

The anonymous student also voiced frustration with the burden of confidentiality policies placed on survivors. She worries that the woman in the Montague case could be punished by the university for speaking out, while Montague faces no repercussions for coming forward because he is no longer at Yale.

"Now that Jack Montague is expelled, he has nothing to lose by speaking out because Yale cannot punish him any more than they already have," she said. "The woman who filed the complaint has remained and will continue to be silent because she has to maintain confidentiality in order to retain Yale's protection."

"This puts Montague in the privileged position of being able to control the narrative," she contended.

After he was expelled, Montague sued Yale for breach of contract and defamation. Montague's lawyers accuse the UWC process of being "deeply flawed," claiming that Montague had "reasonably believed he had consent to engage in sexual activity." Their statement further accused Yale of expelling Montague because he was "a prime candidate to serve as Yale's poster boy for its tough enforcement of its Sexual Misconduct Policies."

The narrative put forward by Montague's lawsuit reveals some of the facts of the highly secretive case. In its response, Yale confirmed that Montague and the student had a previous sexual relationship and that the case concerned their fourth encounter, which Montague holds was consensual but which the UWC ruled was not.

Because of secretive university policy, coverage of the Montague case missed information about the survivor and the proceedings. Reporting from the Yale Daily News and other news outlets relied heavily on statements from Montague's representatives. The female student who accused Montague of rape has not come forward. "The statement that came out last spring was nowhere near the full story," said Price. "I think that was clear to most people who read it."

Even so, the anonymous student who spoke to *The Politic* said that her experience with the UWC gave her confidence in its handling of the Montague case, regardless of its secretive proceedings.

"As someone who has been through the UWC informal and formal complaint processes, I can tell you that the panel takes the he-said-she-said issue extremely seriously," she said.

"Yale is extremely wary of taking action against a respondent unless the facts seem incredibly unambiguous," she shared. "We do not know many of the details of this case, but we can safely say that Yale has deemed Jack Montague a danger to our campus."

In response to Montague's suit, Yale issued a statement dismissing the claims as "legally baseless" and "factually inaccurate." They did not elaborate further on either claim.

David Post, chairman of the UWC, defended the confidentiality clauses, even if they result in single-sided reporting on the hearings. "As much as Yale administrators might want to respond to the inaccuracies in these statements, we remain committed to our obligation to protect the privacy of complainants, respondents, and witnesses involved in UWC cases," he told *The Politic*.

"There is nothing more frustrating to a member of the UWC than seeing how information gets disseminated when people choose to violate the confidentiality agreement," said Lofton. "That decision does absolutely distort the public's understanding of our proceedings, and I think that there's nothing we can do about that."

"The committee cannot do its work if it is subject to the terms of public opinion," she added.

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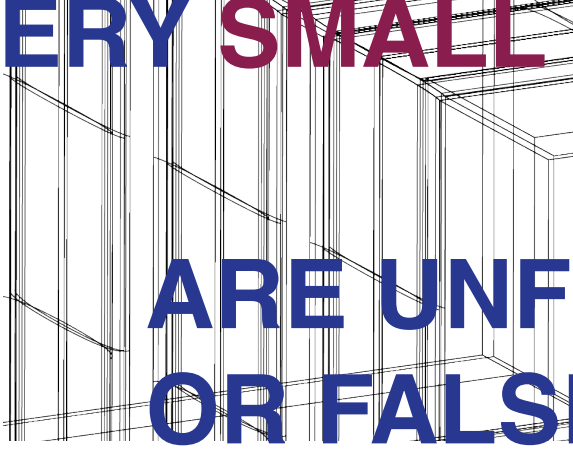

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But from the anonymous student's perspective, the freedom of survivors to speak out is important.

"We [survivors] are told that the only way to protect our safety and dignity is to remain very private. But sometimes this burden is too difficult to bear alone and, as I have learned, you can draw strength by speaking out," she reflected.

Lofton maintains that UWC rules do protect survivors. "The complainant wants it after the fact, but they haven't thought through what the end of confidentiality would be to the beginning of the fact, to the process of the proceeding itself," she said.

But Narea disagreed. She made a distinction between confidentiality during the proceedings and after the ruling. "I think it's sort of a different thing to be contesting the results of a case, as opposed to the actual case while it's going on," she said.

"I wish that [the survivor in the Montague case] had spoken out," she said.

Narea believes the student could have come forward without facing real repercussions from Yale.

"There is power in the media. I think that if she had gone to the media, if she had gone to the Times with that story, the university would've looked really, really bad if they had expelled her," she said.

Nevertheless, Narea acknowledged the risks students face in breaching confidentiality policies. "If your education is on the line, I understand it's a personal decision and that you wouldn't want to take that risk, and I think that the university knows that as well," she said.

"I think that it's important to have these conversations, and I think [the YDN] story sparked some of them," Narea said.

She continued, "But we need to continue keep having them, and we're not going to continue having them if victims are being silenced by confidentiality clauses that are maybe doing more harm than good."

"ederly is a smart and accomplished journalist, and the failures of that piece were so sweeping

that there had to be other motivations," Caitlin Flanagan, a contributor at The Atlantic who writes about college campuses and feminist issues, told *The Politic*.

Flanagan believes Erdely's mistakes in the *Rolling Stone* article could have been avoided. "She was on a huge contract—$300,000 for seven pieces—and was expected to deliver break-the-internet stories. I think she cynically exploited the goodwill of readers," she said.

Price agreed. "The alleged assault around which the piece is centered is not representative of the vast majority of sexual assaults on college campuses, which usually involve two previously acquainted parties."

"The media does itself a disservice in writing about stories that are very clearly victim-and-perpetrator complexes because it really doesn't capture a majority of the cases that tend to happen on college campuses, which are much thornier to decide," Narea echoed.

Price also points to the benefits of writing a victim-perpetrator story that fits a traditional narrative. "The fact that Sabrina Erdely chose to profile the gang rape of a young white woman shows that, from the outset, she wanted a sensationalist piece rather than an accurate exposé

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A LOT OF MEDIA TREAT THIS AS A 50-50 ISSUE"

of campus sexual assault and the ways in which colleges fail to tackle it," she said.

Regardless of Erdely's motivations, the failures of her article overshadowed the valid concerns it raised about how UVA handles sexual assault.

"The criticisms of UVA didn't totally fall apart," Bazelon said. A federal report released in September of 2015 by the Office of Civil Rights found that UVA had violated Title IX from 2008 through 2012 and had three more violations after the 2011-2012 school year. Further, it found that UVA had created a "hostile environment" for students on its campus and that it "failed to investigate" allegations of both "rape and gang rape" on its campus.

Furthermore, Jackie's story was never proven false.

"I actually do believe something happened to Jackie, and I think it's really unfortunate that this story has been about false claims and what people are saying about her," Annie Clark, co-founder of End Rape On Campus, said in an interview with *The Politic*.

Ryan Duffin, a friend of Jackie's, told the Associated Press that he also believed something happened to Jackie that night. Though the story Jackie told *Rolling Stone* was not the story she told him, he did receive a "frantic call" from her on the night of the alleged rape. When he and the two other friends named in the story went to meet her, he said, "it looked like she had been crying...Her lip was quivering, her eyes were darting around."

"If she was acting on the night of Sept. 28, 2012, then she deserves an Oscar," Duffin said.

Clark cited a study done by the FBI that shows that only two to eight percent of rape allegations are false—meaning nearly all of them are true. "Even though a very, very, very small minority of cases are unfounded or false allegations, a lot of media treat this as a 50-50 issue," she said.

"Erdely and her editors had hoped their investigation would sound an alarm about campus sexual assault and would challenge UVA and other universities to do better. Instead, the magazine's failure may have spread the idea that many women invent rape allegations," reads the Columbia report.

"That kind of thing is really devastating. It does have a big impact on campus sexual climate and how people view survivors," Price said.

"You start to get this mentality of 'This is all a bunch of nonsense, there is no sexual assault problem, these are just a bunch of rigged cases that are going on,'" Wu said.

"I hope that my mistakes in reporting this story do not silence the voices of victims that need to be heard," Erdely said after her story unraveled.

Her anxieties about the consequences of her journalistic failures may not be unfounded.

"George Wyatt," a commenter on the YDN website, commented on an article about the Montague case: "Consider a few cases: UVA Jackie – Totally PC, massive left-wing hype, completely fake. [...] Columbia Sulkowicz - Totally PC, massive left-wing hype, almost certainly fake. Yale - Totally PC, massive left-wing hype, almost certainly fake."

# THE KOFFEE? QUESTION

## An Eccentric Cafe Straddles Yale and New Haven

BY **GABRIEL MALEK**

**I SIT IN THE BACK LEFT CORNER OF THE SHOP** and recline on the gray chez with a pistachio-colored pillow propped behind my back. The black leather bench on my left reminds me of elementary school piano lessons while the white swivel chairs in front of me evoke an orthodontist's waiting room. I could not make sense of the room—an amalgam of tables, lights, and curtains scattered around a trapezoidal space. The seating area looks like the twisted love child of a 52nd Street jazz club and Cheech and Chong's basement with elements of a 1940s diner. I pull my chai latte towards me and admire the poetic chaos. Welcome to "Koffee?"

Walk past Timothy Dwight College on Whitney Avenue until you reach Audubon Street in the New Haven Arts District, a small enclave lined with industrial red brick buildings that you might see in an Urban Outfitters commercial. You'll notice a white sign that reads "KOFFEE?" in vertical letters. Enter just like I did on a warm afternoon in

"The sitting area looks like the twisted love child of a 52nd Street jazz club and Cheech and Chong's basement."

early November. Enter if you need somewhere to clear your head, talk to strangers, or drink a latte. Step outside of Yale.

Established in 1992 by dancer Candace Balasi, Koffee? boasts a "quirky reputation." After four years, Balasi sold the shop to Lee and Tracy Jackson, who gave the shop a warmer, more local aura – they woke every morning to bake muffins for their regulars. In 2002, Duncan Goodall '95, who studied at Koffee? while at Yale, bought the shop from the Jacksons.

Koffee? is not like the Blue State coffee shops on Yale's campus — nor does it try to be. Whereas Blue State exudes sleek uniformity — its wooden tables ordered in neat rows against its sparse walls — Koffee? screams with character. Framed 4x6 photos of devoted regulars line the first wall you'll see. And a parted red curtain in the walkway makes the store feel like home.

Before ordering, I sit at the counter looking out onto Audubon. Knick-knacks, like tiny scarecrows and newspaper clippings, line the window. A bulletin board hanging next to the counter reminds me of upcoming events. I feel as though I'd walked into a community, or maybe a cult.

Bob Marley grooves on repeat as I approach the cash register. I notice that, unlike at Blue State, the baristas wear what they want – no uniform needed. The man behind the register sports a gray vest over a button-down shirt tucked into faded jeans. Long dreadlocks rest bundled on his shoulders. He quickly prepares my chai latte and corn muffin with a smile. I grab my drink and settle into the gray chez in the back corner, the only seat open at 2:30 p.m.

There I relax until 4:00 p.m. as a breeze creeps through the open door to Koffee?'s backyard, a sparse plot with rusty benches. Despite people-watching all afternoon inside the store, I exit as confused about the mismatched couches and tables as when I entered. On my way out, I ask the dreadlocked barista if he has time to talk about Koffee? tomorrow. He agrees. I return to the shop at 2:30 p.m. the

"The store refuses to conform, especially to the gentrified, Portlandia hipster."

next day and find him stacking milk cartons behind the counter. We walk outside to chat in the backyard. His name is Nate Blair. He is wearing a tattered purple shirt and stained pants with holes, a sharp contrast from his gray vest yesterday. He removes a cigarette from his front pocket as we begin to talk. I ask him to explain Koffee?'s vibe.

"Growing up in New Haven in the early nineties, I noticed that coffee was like a counterculture, catering to non-mainstream, dirty, grungy people." Blair told me. "Now coffee has become this huge business. Dunkin Donuts is everywhere, and there was even a Starbucks on Tiananmen Square for a while, which blew my mind.

"But Koffee? manages to maintain that 1990s feel in the sense of being a little quirky, having some mismatched chairs, nooks and crannies, and baristas that are encouraged to be individuals rather than robots," he explained.

This quirkiness fosters camaraderie between customers. Koffee? welcomes all wanderers to bask in its soothing drinks, music performances, and "Koffee? after dark"—when the cafe becomes a bar. And while Koffee? is always open to Yalies, I wonder whether many of us would fit in here.

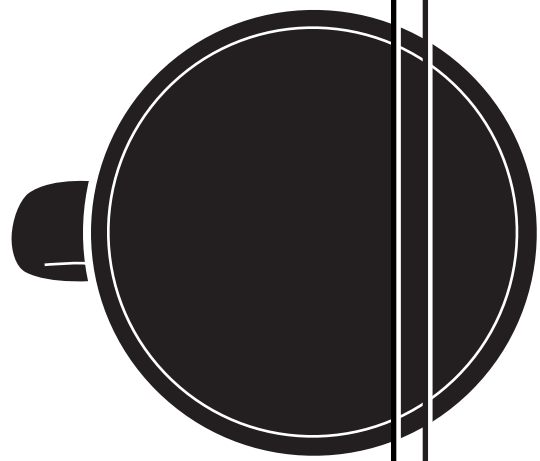
**IT'S EASY TO SEE KOFFEE?'S APPEAL TO COLLEGE** students. The place revels in its originality — the kitschy name, out-of-season Christmas lights, flea market curtains, and curved windows.

The Koffee? question is left unanswered. Is the place a cafe? A restaurant? A dive? Most employees probably couldn't tell you, maybe because they don't care. The store refuses to conform, especially to the gentrified, Portlandia hipster. Its customers range from middle-aged office workers and grad students to retirees, young wanderers, and indie music junkies. You won't find bearded, flannel-wearing baristas praising the store's superior coffee. As good as the drinks are, they seem like an afterthought at Koffee?.

"Koffee? actively tries to be a social place. The environment and spacing is conducive to interacting with strangers and just getting a cup of coffee with a friend and sitting in a comfy chair," Blair said. "One of the bigger differences between Koffee? and the other New Haven shops is that we have regulars who know each other specifically from Koffee?."

Koffee? has a lot in common with college life. The store opens its doors to all people and almost demands individuality from those who enter. This message mirrors the one freshmen heard during orientation: There is no right way to do Yale.

Like Yale implores its undergraduates to learn from their peers, Koffee? highlights its community more than its brews. Customers often read the bulletin board more closely than they do the menu. Koffee?, then, seems to embody the college experience. With each eclectic couch and late-night



"I noticed that coffee was like a counterculture, catering to non-mainstream, dirty, grungy people."

performer, the place beckons students.

But when I look around, I don't see many Yale sweatshirts. Unlike Blue State, Koffee? does not teem with undergraduates, bumping into each other as they wait in line and jot quick bursts on their phones.

Blair admitted that Koffee? "is out of the beaten path" for students. He added that the store's culture may not mesh so well with the Blue State crowd. "They act as though Koffee? is an extension of their cafeteria whereas some people act like it's a place where they have chosen to come to because they actually appreciate the place," Blair said.

I can't tell whether Blair is being cynical or brutally honest. Maybe he's being both. When I first met him, he mocked freshman year introductions. "Everyone in your class is trying to sound like they're the smartest kid there," Blair said. "When I worked at Miya's, I loved the first three weeks because you could immediately tell who the freshmen were because they were trying so hard to impress the other freshmen who are also trying so hard to impress the other freshmen."

Koffee? forces its customers to chat. The couches arranged in small clusters and the communal tables almost beg coffee enthusiasts to sit and talk. As New Haven residents relax and converse, Koffee? thrums with one voice. Yale students who see coffee shops as a space to work would not find that in Koffee?, which values the social over the studious.

When I approach Roberta, a Koffee? regular, she looks shocked. "You must be pretty brave to come introduce yourself to me," she laughed.

To some locals like Roberta, the closed-off attitude from Yale students conveys entitlement. Blair claimed to receive different treatment from Yale students and New Haven residents.

"Most students have never held a job in their life, and that means that they don't know what it's like to work a long day and to have to see somebody everyday that you have to be nice to even though they don't treat you as a person," Blair said. "Young people don't often appreciate the job that you're doing."

While I know that many Yale students do have jobs, I recognize Blair's frustration.

"Tipping the barista means you care," Blair stressed. "There's a guy named John, and every single time he comes, he'll order a small black coffee and then he'll say, 'This is for you guys,' and he puts in a nickel in the tip jar. If you tip at a coffee shop, you think it doesn't matter, but it makes a world of a difference because it means that you see the person on the other side of the counter as a human being who has a life and is doing things."

Blair seems to see Koffee? at the edge of the divide between Yale and New Haven. The place has the potential to connect students with New Haveners looking for music and community. It props its door open for Yale students — and yet some enter with blinders. Koffee?, with its bizarre panache, yells its advice: Explore. Open to the city and it will open to you.

"I've worked in New Haven my whole life, and I definitely think I can read people. It's interesting because the effect of the students is that of entitlement," Blair said as he stomped his cigarette in the dirt. "If it weren't that way, there would probably be less of a divide between New Haven and students."

He smiles, shakes my hand, and bounds up the back stairs into the shop. There is a line of customers waiting.

# BREAK THE AGE

## WOMEN CHALLENGE DISCRIMINATORY UNIVERSITY RULES IN INDIA

BY **ARUN SHARMA**

**WE SHALL NOT BE COWERED! WE SHALL NOT BE SILENCED. OUR COLLECTIVE POWER IS OUR STRENGTH, AND WE WILL ASSERT THAT BACK TO YOU AGAIN AND AGAIN, LOUDER AND LOUDER, EVERY TIME!**

**THESE ARE THE DEMANDS FOUND** These are the demands on the Pinjra Tod (Hindi for "Break the Cage") Facebook page. Scroll, and you'll find hundreds of images and stories of female students revolting against rules to dress or act a certain way for their own "protection." Pinjra Tod, which has swept across Indian universities, aims to reclaim public spaces in India for women. By crowdsourcing its grievances, Pinjra Tod gathers opposition to well-intentioned but sexist university policies.

Sexual assault is a widespread and longstanding problem in India. The National Crime Records Bureau reported more than thirty thousand rapes in 2015. But because marital rape is not illegal, the rate of sexual assault is vastly underreported. The Rape, Abuse, and Incest National Network estimates that at least half of all rapes go unreported.

As women break into India's public sphere, they often face violent retaliation.

"Liberalization through the 1980s and 1990s has resulted in a lot of shifts in terms of what young women can do," Inderpal Grewal, chair of Yale University's Women's Gender and Sexuality Studies Department, said in an interview with *The Politic*.

"This creates a backlash in the form of moral policing and physical, often sexual, assaults," she said.

The issue of sexual assault in India drew international attention in 2012, after a group of men assaulted a woman on a bus in New Delhi. She later died from her injuries. Thousands of

**YOUR PATRIARCHY! YOUR *MANUWAD*! YOUR AGGRESSIVE MASCULINITY! *BAS AB AUR NAHI*! WE REFUSE TO BE CAGED INTO YOUR BRAHMINICAL IDEAL OF THE *BHARAT MATA*!**

protesters lined the steps of the capitol building, demanding that the government properly prosecute perpetrators and prevent future assaults.

Public officials responded with several promises. New Delhi would hire more female police officers for a department where only one out of 161 stations had a female officer on the ground. They would create fast-track courts to quicken a backlogged system with fifteen judges for every million people. They pledged to raise the dismal national conviction rate of 26 percent for rape cases.

More than half of the 500,000 students in Delhi are women. Because most Indian universities do not have their own dormitories for women, they contract out their housing needs through a "paying guest" system at hostels. Universities therefore lack direct oversight, leaving women few mechanisms within the university to influence hostel policies they believe are restrictive and discriminatory.

The 2012 assault brought unwelcome changes in hostel policies. A women's hostel at Punjabi University in Patiala set a curfew of 6:00 pm. The National Institute of Technology Calicut threatened women with suspension or even expulsion from the hostels for being seen with male students. Both of these hostels also require women to have signed permission from guardians to stay outside past the curfew. Similar policies are in place across the nation.

The belief that women's behaviors are to blame for their own assaults is not unique to the academic sphere. The chair of the Chhattisgarh State Women's Commission has said that "women are equally responsible for crimes committed against them." Letting women out onto the street has become a liability — one for which universities do not want to be held accountable.

The university-specific protests against hostels loosened curfews, but only slightly. In 2015, smaller protests merged into the larger Pinjra Tod movement, which targeted the government instead of individual hostels. Its strong media presence speaks to its ability to grow and seize on public unrest.

"For the last couple of years, many movements have emerged outside of traditional feminist spaces," Vinita Sahasranaman, an activist who has worked with Pinjra Tod, said in an interview with *The Politic*. "Ten years ago, if we were talking about people mobilizing, we would recognize five organizations and the people at their helm. We often don't know who is organizing because of their grassroots, social media-based approaches," she said.

"Pinjra Tod's strategies are very mature and sophisticated. Along with their demands, they have done their research and created larger networks of supporters and allies. They have found new intersections with other movements across the country to build a coalition," Sahasranaman explained.

Protests have spread to other regions across the country, resulting in moderate gains for the movement. Some politicians have argued in favor of removing curfews, and Pinjra Tod has catalogued the regulations of local hostels to compile hostel blacklists. Pinjra Tod has built coalitions with other organizations, including Why Loiter.

Sahasranaman described Why Loiter as "a collective born from a WhatsApp group. It organizes women's presence in outdoor spaces to normalize it. This group doesn't even consider itself a social movement — Why Loiter was started by an actor as an experiment of sorts."

The Delhi Commission for Women, a government organization that operates like a civil court, sent a notice to many universities demanding justifications for these "restrictions on women's freedom of movement."

# "PINJRA TOD IS ABOUT OWNERSHIP OVER WHERE WOMEN LIVE. WHY SHOULD SOMEBODY TELL ME WHEN TO COME IN AND GO OUT?"

But framing the problem as a restriction on freedom of movement only captures part of the situation.

"The idea of freedom on the streets is important, but women only recently have thought about reclaiming public spaces," Grewal explained. "They have fought for legal equality, against forms of violence, and for the vote. Indian women who are constrained in the home could always exert agency through voting."

"Pinjra Tod is about ownership over where women live. Why should somebody tell me when to come in and go out?" Grewal asked.

The question is buried in India's early history, when women were considered a monetary asset.

"At the point of Partition this was established when women's bodies were traded to maintain the boundary," Grewal argued. "The division was established through massive sexual violence. Women's bodies stand for the property of the nation."

This led to a longstanding battle within Indian culture regarding the role of women.

"The issue first arose when the founders of India wanted to harness the power of women to work against the colonial regime," said Grewal. Women could revolutionize the Indian economy and help make the country competitive against Western powers.

Grewal acknowledges that many people have debated the scope and impact of these efforts, but the central conflict still holds. On the one hand, Indian women are supposed to drive the economy. On the other hand, they are supposed to be the assets of a young nation.

"There is simultaneous pressure to educate women while also containing them," she said.

Without addressing the basic issue of moral policing and controlling women's bodies, a full reclamation of public spaces is not possible.

"Safety should not be the primary agenda," Sahasranaman contended. "Allowing women access to things in the public domain should be the priority. Pursuing safety will only put women back home."

The right to be in the public space, Sahasranaman argued, is not the same as ownership of that space. Today, women who have the right to vote do not have the right to be outside after 7:30 pm.

The fight for this freedom is at the heart of Pinjra Tod's activism. When women go to college, the burden of pressuring women to behave in a certain way shifts from parents to universities. Anuradha Mathur, a Yale World Fellow, runs an all-women's graduate program in Delhi. Her program has a relatively relaxed curfew of 10:00 pm, after which women are allowed to be outside so long as their locations are known.

Mathur instituted the curfew to reassure the women's parents.

"We run a new all-women's program in Delhi," she told *The Politic*. "We need to be able to have conversations where parents would be comfortable knowing the program is thinking about their children's safety."

If women are not able to remain safe in the streets, the university becomes responsible for enforcing those rules meant to protect them.

"I am conscious that the generation I am working with is not a throwback to the past. We have a fine balance because Indian parents have long ties to their kids and continue to pay. In the United States universities expect parents to pay the bills but do

not communicate to parents about their children," said Mathur. "This mentality does not exist in India."

If parents cannot protect their daughters in person, they expect universities to do it. Both situations leave women with little agency over their own bodies. While women's movements have led to some important legislative changes—from amendments to sexual harassment laws to harsher sentences for sex crimes—many activists and academics don't think this is enough.

A focus on legislation directs attention away from underlying cultural problems.

"Those in power work in various parallel systems," Lawrence Liang, a Rice Visiting Fellow at Yale, explained to *The Politic*.

Liang believes that effective solutions require broader cultural change, possibly in the realm of media and entertainment.

**THE 2016 BOLLYWOOD FILM *PINK*** directly tackles the issue of sexual assault. In the film, three men attempt to assault three women, but one of the women acts in self-defense and escapes. In an act of retaliation, she is kidnapped and assaulted in a car. Eventually the movie shifts into the realm of a courtroom drama as the three women attempt to jail their attackers.

*Pink* marks a departure from other courtroom dramas in how it depicts the three women. "The women in this film diverge significantly from previous narratives featuring idealized, traditional heroines," Liang explained. "An entire genre of film emerged in the 1970s of 'avenging women.' Victims of sexual violence are denied justice from the system, resulting in vigilante violence. They are a surface critique of rape that rely upon depictions of rape as sexual titillation."

But the women of *Pink* are not glamorized, glorified, or sexualized for the viewer. They are not upper-class wives but instead single, working women from diverse backgrounds, each trying to make her way in Delhi.

The film is also noted for its casting of Aamitabh Bacchan, a Bollywood actor of almost mythological status, as an attorney for one of the young women.

"[Bacchan] is important for a certain form of sovereignty in India," Liang said. "Not in the classical sense of the state and the dictator, but symbolically. By virtue of this status, for him to say certain things is incredibly important."

Bacchan's role in *Pink* is especially remarkable when contrasted against some of his previous films. In *Cooli*, he kidnaps a woman and holds her in his room. The film resolves when they fall in love. It presents a trope in which the protagonist performs an act the audience knows to be outlandish but which is still presented as an acceptable form of romance. *Pink* does nothing of the sort.

**"THERE IS SIMULTANEOUS PRESSURE TO EDUCATE WOMEN WHILE ALSO CONTAINING THEM."**

**Inderpal Grewal,**
Chair of Yale's Women's Gender and Sexuality Studies Department

**GROUPS LIKE PINJRA TOD AND WHY LOITER BRING ACTION AND RECLAMATION OUTSIDE OF EXPLICITLY ACTIVIST SPACES.**

In his cross-examination of one of the women, Bacchan's character asks about her sexual history, her habits, her profession. But, at the end of her cross-examination, an unexpected twist—no, he says to the courtroom. None of this matters.

And, consequently, the women win their justice. The film posits that a woman's sexual history should not impinge her ability to withhold consent, accuse her attacker, or access justice.

The resolution of *Pink* marks a sharp distinction from earlier films in that, after immense struggle, the three protagonists get justice through the legal system. The film presents an optimistic message that there is a possibility of the legal system acting as an ally.

Thus, *Pink* represents a new wave of feminist women in India and broadens the conversation on the cultural front. Rather than claiming equal rights to work or to vote, *Pink* demands that women have equal access to public spaces and their own autonomy.

Film often performs an important role in opening cultural dialogues in India, and *Pink* closely follows this tradition.

"I wouldn't describe the film's greatest asset as uniqueness," Liang said. "With every era, you have slight recalibrations of what is possible in terms of expression in the mainstream media. At the end of the day, Bollywood films are still driven by investments calculated on the possibility of return. When these films do well, they expand the possibilities of what can be said further. In this way, a unique presentation of these dialogues is not so important as a widely available one."

This dialogue has taken on a new urgency in recent years due to deeper structural changes in Indian society.

Historically, women's interactions with men, especially concerning their sexuality, have been controlled to keep them marriageable.

"In general, India is a very gender-segregated society, or at least it tries to be. Given the ways in which people are socialized, men produce a need and desire for segregation," Grewal said.

In recent years, this social segregation has become more difficult to maintain. A globalized corporate economy now means economic prosperity and independence, which in turn erodes women's ability to fulfill their traditional, segregated role.

As women move further and further from the ideals that Indian culture has projected onto them since its independence, efforts to contain them become more overt. These attempts to control women have been met with strong resistance, and not only from Pinjra Tod. Groups like Pinjra Tod and Why Loiter bring action and reclamation outside of explicitly activist spaces.

These movements are rooted in larger social and economic changes that have inspired their existence, and their goals are onerous. A full spectrum of women's rights must be actualized in order to achieve their vision of parity: changes in policy, mindsets, families, and workplaces.

The question of women's roles in India is not going anywhere soon, but neither are the women working to answer it.

"These meaningless rules cannot cage us anymore," the activists vowed on Pinjra Tod's Facebook page, "They will be broken, they will be transgressed, they will not be followed anymore!"

# Bordering Tolerance: British Left Confronts Anti-Semitism

BY **SETH HERSCHKOWITZ**

**THE IDEA THAT LABOUR AND ANTI-SEMITISM** are in the same sentence is a shocking state of affairs," former British Foreign Secretary David Miliband told a crowd in London in November.

For the past year, the Labour Party, Britain's center-left political party, has been forced to address anti-Semitism within its ranks.

As of September, the Labour Party had suspended around 20 members for anti-Semitic rhetoric. Jeremy Corbyn, the party's leader, has referred to Hezbollah and Hamas as "friends" and voiced support for a Palestinian activist who believes in blood libel—the myth that Jews use Christian blood to make matzo. Corbyn's words accompany Labour members' uses of slurs and anti-Semitic tropes, including stereotypes meant to delegitimize Israel and claims that Jews instigated the trans-Atlantic slave trade.

Labour leadership now faces public pressure to confront anti-Semitism throughout the party. According to a study by the Campaign Against Anti-Semitism, nine out of ten British Jews believe that the Labour party is soft on anti-Semitism.

This trend of anti-Semitism is not limited to party leadership. The Oxford Labour Club (OULC), one of the party's academic chapters, also came under fire for anti-Semitism early this year.

"A large proportion of both the OULC and the student left in Oxford more generally have some kind of problem with Jews," Oxford student Alex Chalmers wrote on his Facebook page in February. The post served as Chalmers' public resignation as Co-Chair of Oxford's Labour party club, claiming the organization fostered anti-Semitism. "I had hoped during my tenure as Co-Chair to move the club away from some of its more intolerant tendencies: Sadly, it only continued to move away from me," he said.

Former President of Oxford University Jewish Society Aaron Simons echoed these sentiments in an interview with *The Politic*. "It became quite clear to me during my second and third year that left-wing spaces on campus were increasingly hostile to Jews," he said.

"The use of neo-Nazi slur 'Zio' [an abbreviation of 'Zionist'] was widespread, and even continued after its provenance was pointed out. When Jewish students tried to speak up, we were frequently met with suspicion and open hostility, and nearly always accused of being disingenuous," he continued.

"I know of Jewish students who have been told Auschwitz is a 'cash cow' and who witnessed Labour Club members mock the Jewish mourners at the funeral of the victims of the Paris kosher supermarket attack," Simons said.

# lsh Left

**"Where I think there is an issue... over the capacity of some members of the party and of far left political culture to tolerate [anti-Semitic] incidents."**

**JEWISH OXFORD STUDENT DANIEL KODSI,** an editor for Oxford's independent student newspaper, Cherwell, who covered Labour anti-Semitism last spring emphasized to *The Politic* that many Oxford students fail to recognize anti-Semitism when it emerges.

At Oxford, Kodsi said, "I don't think that there is much active anti-Semitism; there certainly isn't a culture of anti-Semitism."

"But Oxford does seem to be possessed by a certain complacency towards anti-Semitism which I think could lend itself to discrimination should push ever come to shove over issues like Zionism or Israel," Kodsi reflected.

Only a handful of Labour has recently come under fire for anti-Semitism. Indeed, the failure to acknowledge racist remarks can lead to a culture in which anti-Semitism has the potential to persist. According to Professor David Feldman, director of the Pears Institute for the study of Anti-Semitism at the University of London, this failure stands at the heart of Labour's issue with anti-Semitism.

"Where I think there is an issue, is not merely over the number of documented anti-Semitic incidents perpetrated by members of the Labour party, but also over the capacity of some members of the party and of far left political culture to tolerate those incidents," said Feldman in an interview with *The Politic*.

Paradoxically, Labour's relationship with Jews and Israelis shares a history of cooperation and support. When Israel was founded in 1948, the Labour party saw the Jewish state as a unique opportunity to institutionalize socialist policies at the national level.

"During its early history, Israel as a state was led by socialists. [Founding Israeli Prime Minister] Ben-Gurion came out of a socialist background and created socialist institutions," David Sorkin, professor of Modern Jewish History at Yale University, told *The Politic*. "Israel was seen as a bright star on the socialist firmament."

Furthermore, the Labour party claims to support oppressed groups and ideas of tolerance and equality. The notion of tolerance is so ingrained in the Labour party that written on the back of party membership cards is a reminder to strive for a world "where we live together, freely, in a spirit of solidarity, tolerance and respect."

Here Labour faces a difficult problem: How can a party that claims to fight for the rights of the oppressed be caught in so many anti-Semitism scandals?

"As an issue, [anti-Semitism] has been exposed in all kinds of different ways as a direct consequence of Jeremy Corbyn," explained Steven Fielding, political history professor at the University of Nottingham, in an interview with *The Politic*.

Corbyn was elected leader of the party last fall after Ed Miliband, his more moderate predecessor, lost the 2015 general election to former Conservative Prime Minister David Cameron. After Miliband's defeat, thousands of grassroots supporters backed Corbyn, a more radical and anti-establishment candidate.

In ascending Labour's leadership, Corbyn nudged the party's far-left political wing into the spotlight.

"He's not a mainstream Labour party figure," Fielding said.

"[Corbyn] spent his time as a backbench Labour MP with people who got involved in all types of different campaigns. The concerns of these people were very much anti-capitalist, anti-western, anti-United States, with Zionism being seen as an imperialist ideology," Fielding continued. "When he entered the Labour party, many of these people entered the Labour Party, too."

But these types of Labour politics are not new. Rather, Corbyn's rise to power represents a revival of far-left politics within Labour and harkens back to debates over the legitimacy of Israel.

In the 1960s, following the Six Day War in which Israel claimed territory in the Golan Heights, Gaza Strip, West Bank, and Sinai Peninsula, the Labour Party split on the issue of Israel-Palestine. The hard right of the party supported Israel while the hard left criticized the country as an occupying force in the Middle East.

Israel's occupation of the Gaza Strip and West Bank have further colored Labour's view of the state. The policies of Israel are seen by many Labour members as oppressive towards Palestinians. Therefore, being opposed to a Jewish state, or "anti-Zionist," is a way for party members to publicly reject the oppression of Palestinians by Israel.

"The left of the Labour Party views skepticism of Israel as a form of anti-racism, and so under that thinking, to be [anti-Zionist], it is therefore

impossible to be anti-Semitic because you are, by definition, anti-racist," said Richard Johnson, a Ph.D student at Oxford and a Labour member in an interview with *The Politic*.

Within the party, centrist Blairites often duel with Corbyn's far-left movement. Like the polarization between Democrats and Republicans in the United States, Labour members are rushing to the far right and far left of their party. Being pro-Palestine or pro-Israel is a way of classifying yourself within the party.

"In the '80s, when we had a very similar faction between the left and right of the party, the Israel-Palestine question started to become a proxy for those debates," Johnson explained. "They are viewing Israel-Palestine as a proxy for left and right dominance within the party."

These party tensions surrounding Israel-Palestine can easily boil over into the employment of anti-Semitic tropes in criticizing the state Israel.

For the pro-Palestine far-left, there also exists confusion about what constitutes anti-Semitism. This makes identifying and criticizing anti-Semitism in the Labour party a difficult task.

"Corbyn has been a ceaseless campaigner over the years as a backbencher against racism, but as [the Home Affairs Committee on anti-Semitism] states, perhaps doesn't have quite a clear understanding of post-1945 anti-Semitism," wrote David Winnick, member of parliament for Walsall North, in an email to *The Politic*.

This disconnect relates to the rise of Israel, and of Jews, as an international power. To Feldman, the failure of some people in the Labour Party to identify anti-Semitism when it arises is the consequence of their associating racism with power.

This association, Feldman said, is not wrong but incomplete.

"In the past, it was easier for people on the left to recognize anti-Semitism," he said. "So what's changed? Jews now have their own state and have emerged from powerlessness to power."

Some Labour members and others on the left can find it hard to recognize racism against Jews because of the privileges afforded to them. "The idea that racism is power leaves people ill-equipped to spot racism when it is directed against a group that is coded as 'white' and who, overall, are more affluent than the average and identify with a powerful state in the Middle East," Feldman explained.

Labour's dedication to fighting the oppression of all marginalized peoples can also engender negligence in monitoring anti-Semitism and recognizing Jews as a minority group.

Fielding said, "I think [Corbyn] genuinely believes that whatever is said or done, verbally, it pales in significance with how Muslims may be subjected to Islamophobia and how black and west Indian people in the inner cities are treated by police."

"There's a hierarchy and the Jews are at the back," he said.

Dov Boonin, the current president of the Oxford Jewish Society, agreed. "It seems to be an inability to recognize Jews as an oppressed minority," he said.

"There's this mindset of looking out for oppressed minorities, and they're very careful with black students or students from lower-class backgrounds, women, or potential oppressed minorities. But I feel like there exists sometimes a failure to appreciate Jews as an oppressed minority," Boonin continued. "When you fail to recognize that, you fail to check your actions."

"I didn't get anti-Semitism as racism," said Naz Shah, MP for Bradford West who was suspended for anti-Semitism. "I had never come across it. I think what I had was an ignorance."

The Labour party suspended Shah this spring following a series of posts on her personal Facebook in which she likened Israel to Nazi Germany, shared a satirical cartoon which recommended Israelis relocate to the United States, and reposted an article comparing Israel to Al-Qaeda.

At the same time, however, the far-left contends that the Palestinians are an oppressed group.

"They are so convinced of their own righteousness and their status as anti-racists that they cannot conceive of the possibility that left-wing anti-Semitism exists," Simons said.

Simply put, Labour members believe themselves impervious to anti-Semitism due to their rejection of Israel as an oppressive state and of Zionism as a racist institution.

An example of this logic can be seen in the case of former Mayor of London Ken Livingstone. The Labour party suspended Livingstone in April after implying that Hitler was a Zionist.

"[Livingstone] presented Zionism as a racist institution," said Johnson. The rationale becomes, he explained, "How can I be anti-Semitic or racist if I'm opposing something that Hitler supported?"

This opposition to Israel combined with adamant support for the Palestinian people means that many Labour members struggle to toe the line between being pro-Palestine and anti-Semitic.

"These people genuinely feel themselves to be talking on behalf of the oppressed, in this case the Palestinians," said Fielding. "That then merges into general statements about Jews."

"They are so convinced of their own righteousness... that they cannot conceive of the possibility that left-wing anti-Semitism exists."

**SORKIN SAID THE LINE BETWEEN CRITICISM** of Israel and discrimination against Jews is difficult to walk. "You cross the line to anti-Semitism when you question the legitimacy of the state. Or you cross the line when in criticizing the policies of the states, you begin to evoke what are clearly anti-Semitic tropes and images and clichés," Sorkin explained.

Kodsi elaborated on the blending of anti-Zionism and anti-Semitism within British left culture. "There is just a sheer failure on the left, not just at Oxford, to recognize that anti-Zionism is not wholly distinct from anti-Semitism," Kodsi said.

"This is perhaps most clearly borne out by how completely historically Jewish stereotypes have become Zionist stereotypes—where once one would shout out 'filthy Jew!', one now shouts out 'Zio!'"

However, despite statements made by some Labour members and MPs, Labour's official policy supports the existence of Israel by way of a two-state solution. This resolution to the Israeli-Palestinian conflict would mean that a sovereign Palestinian state could exist independently of a sovereign Israeli state, which share a common border.

Amidst accusations of anti-Semitism, Labour could be clearer about this policy.

"One of the really important things to get across is that Labour Party policy, which Corbyn has reiterated, is in favor of a two-state solution. Now you can't have a two-state solution without a state of Israel," Fielding said.

"So there is no sense in which official Labour party policy de-legitimizes the state of Israel. On the contrary, official Labour Party policy assumes the legitimacy of the state of Israel," he explained.

Johnson noted that Labour must also start to listen to Jews if they want to rid themselves of anti-Semitism.

"The leadership needs to do a better job of listening to the Jewish community in Britain. I find it upsetting, just hearing from Jewish friends who are [Labour] members or work in the party who feel unwelcome," he continued.

Johnson said Jews in Britain have not seen Corbyn come out strongly against anti-Semitism.

"They see these comments in the press, and then they expect the leader of the Labour party to come out robustly against it. Corbyn kind of dragged his feet on Naz Shah; he certainly did with Ken Livingstone," he said.

Already, it seems Labour has started out on the wrong foot in attacking anti-Semitism within the party. Last spring, the party announced an investigation led by Shami Chakrabarti into allegations of anti-Semitism following anti-Semitic displays by Livingstone, Shah, and other Labour members and MPs. The report found evidence of an "occasionally toxic environment" within the party and "ignorant attitudes." Though the inquiry made marginal recommendations on the elimination of anti-Semitic slurs within the party, it had little to say about how potentially deep-rooted this anti-Semitism might be.

Many are skeptical of the authenticity of the report, especially when Chakrabarti, the chairwoman of the inquiry, was subsequently offered a peerage and is now a close aide of Corbyn.

To make matters worse, Corbyn made remarks interpreted as anti-Semitic at the announcement of the anti-Semitism inquiry.

"Our Jewish friends are no more responsible for the actions of Israel or the Netanyahu government than our Muslim friends are for those various self-styled Islamic states or organisations," he told the crowd. Though perhaps well-intended, this equation between the state of Israel and the Islamic State showed to many that Labour has a long way to go before the party is free from accusations of anti-Semitism within its ranks.

Moving forward, the Labour party has its work cut out to address more structural prejudices in the party.

"[Anti-semitism] is possibly more structural now that Jeremy Corbyn has become leader and brought into the party people with these particular views of Israel, which I think people do express with anti-Semitic tropes," Fielding said.

"I think some of them do actually believe that Jews have a certain view and can be associated with the state of Israel in very simplistic ways," he said.

"It's not just Corbyn—it is far bigger than that," Simons agreed.

"I used to think that the problem could be solved if Jews spoke out, but now I don't think there's any possibility for change, given the unwillingness to admit there is even a problem," he continued.

Though the Labour party might continue to struggle with anti-Semitism for years to come, at Oxford, there is still hope. Following the OULC anti-Semitism scandal, Boonin has been working to narrow the gap between Jews and Labour at Oxford.

His strategy is twofold. "One, make Jews aware that they would be welcome in the Labour Club and also make sure that, within the Labour Club, Jews are actually welcome."

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